

Court No. - 34

Case :- WRIT - C No. - 30579 of 2012

Petitioner :- Tanveer Azam

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Satish Mandhyan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Sunil Ambwani,J.

Hon'ble Mrs. Sunita Agarwal,J.

We have heard Shri B.D. Mandhyan, Senior Advocate assisted by Shri Satish Mandhyan for the petitioner. Learned Standing Counsel appears for respondent no.1. Shri Mahboob Ahmad appears for respondent nos. 2 and 3.

Issue notice to respondent no. 4. Steps within a week. All the respondents are allowed three weeks' time to file counter affidavit. The petitioner will have one week thereafter to file rejoinder affidavit.

List on **24.7.2012.**

It is submitted by Shri B.D. Mandhyan, that the petitioner had taken house No. D-32, G.T.B. Nagar, Kareli, Allahabad on rent from the husband of respondent no. 4. After the death of the husband of respondent no. 4, she does not want to keep him as tenant in the house and had applied to the electricity department for permanent disconnection of the electricity to harass and to evict the petitioner from the house. The department has permanently disconnected the electricity on 12.5.2012. The petitioner has applied for fresh connection, which has been denied on the ground that landlady has not given her consent.

Without going into the merits of any dispute between the petitioner and respondent no. 4 regarding the occupation of the house, we are prima facie satisfied from the documents annexed including the passport of the petitioner that the petitioner has been living in the premises for a long period of time.

It is submitted that the electric supply monopolised by the U.P. Power Corporation is essential for life. The petitioner has small children and that it is not possible to live without electricity, so long he is living with his family in the house.

Shri Mahboob Ahmad, appearing for electricity department submits that the UP Electricity Supply Code 2005, provides for an

event, when the landlord or the owner of the premises on which the electricity has to be provided, does not give consent. He has referred to provisions of Para 4.2, which provides for 'Licensee's obligation to extend the distribution system'; and Para 4.4, which provides for 'Processing of application for supply'. Sub-clause (a) of Para 4.4 provides that department can provide for a fresh connection on proof of ownership of the premises in the form of registered sale deed, or partition deed, or succession, or heirship certificate, or deed of last will, or proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed, or indemnity Form as per annexure 4.2.

Shri Mahboob Ahmad states that in case the petitioner submits the indemnity form for payment of electricity bills and all other charges, which may, in the event that they are not paid, be recovered from him and his properties, the department may consider to grant a fresh electricity connection to the petitioner.

Without entering into the validity of occupation of the property by the petitioner in the premises, we direct that the Executive Engineer, Allahabad Division, Allahabad, and the S.D.O., Sector Kalyani Devi, G.T.B. Nagar Range, Allahabad will provide electricity connection to the petitioner on his submitting indemnity bond on Form 4.2. The application is already pending since 29.5.2012, and no order has been passed on account of want of the rent deed, the required connection shall be provided within three days from the submission of the indemnity bond.

Order Date :- 21.6.2012

RKP

Court No. - 21

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Petitioner :- Tanveer Azam

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Satish Mandhyan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Vineet Saran,J.

Hon'ble Virendra Vikram Singh,J.

List in the next cause list showing the name of Sri Murtaza Ali as counsel for the respondents.

Order Date :- 17.8.2012

Hsc/

(Virendra Vikram Singh,J.)

(Vineet Saran, J.)

Court No. - 21

Case :- WRIT - C No. - 30579 of 2012

Petitioner :- Tanveer Azam

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Satish Mandhyan

Respondent Counsel :- C.S.C.,Mahboob Ahmad,Murtaza Ali

Hon'ble Yatindra Singh,J.

Hon'ble Mahendra Dayal,J.

The counsel for the petitioner states that this writ petition has become infructuous and he does not want to press it. It is accordingly dismissed as not pressed.

Shri Murtaza Ali, counself for the respondents is present.

Order Date :- 3.9.2012

SFH